

Warsaw, November 14, 2024

Decision

DOKE.561.7.2024

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws 2024, item 572) in connection with Article 7 paragraphs 1 and 2 and Article 60 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws 2019, item 1781) and based on Article 57 paragraph 1 letters a) and h), Article 58 paragraph 2 letter b) in connection with Article 31 and Article 58 paragraph 1 letters a) and e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (Official Journal of the EU L 119 of May 4, 2016, p. 1, with amendments published in Official Journal of the EU L 127 of May 23, 2018, p. 2, and in Official Journal of the EU L 74 of March 4, 2021, p. 35), hereinafter referred to as: "Regulation 2016/679", after conducting administrative proceedings regarding the imposition of an administrative monetary penalty on the Independent Public Health Care Facility in R. based in R. at ul. W., the President of the Personal Data Protection Office issues a reprimand to the Independent Public Health Care Facility in R. based in R. at ul. W. for violating the provisions of Article 31 and Article 58 paragraph 1 letters a) and e) of Regulation 2016/679, consisting of a lack of cooperation with the President of the Personal Data Protection Office in the performance of his duties and failing to provide the President of the Personal Data Protection Office access to personal data and information necessary to perform his tasks in the proceedings with reference number (...).

JUSTIFICATION

Factual Background

On August 31, 2023, the President of the Personal Data Protection Office (hereinafter referred to as: "President UODO") received a preliminary notification of a personal data breach made by the Independent Public Health Care Facility in R. based in R. at ul. W. (hereinafter referred to as: "Administrator" or "SP ZOZ"). According to the content of the notification, the breach consisted of the accidental attachment of files containing personal data (...) of employees employed on the basis of (...) in SP ZOZ in the installation package of the system provided by S. S.A. based in W. (data processor). Clarifying this issue required taking additional actions, particularly obtaining information about the purposes of using the system provided by S. S.A., the categories of data processed in this system, the number of individuals processed therein, information on whether this system is still in use, and whether the Administrator obtained precise information from S. S.A. regarding the specific files or personal data that, due to the unintended inclusion in the installation package of the system, were subsequently disclosed to a third party (another user of the system). In this regard, the President UODO made three requests to the Administrator – letters dated October 12, 2023, November 21, 2023, and January 10, 2024, demanding explanations in this regard. The aforementioned letters, sent to the address of the Administrator's registered office disclosed in the Register of Associations, Other Social and Professional Organizations, Foundations, and Independent Public Health Care Facilities (i.e., ul. W., R.), were received by the addressee on: October 19, 2023, November 24, 2023, and January 15, 2024, respectively.

In response to the supervisory authority's requests contained in the letters dated October 12, 2023, November 21, 2023, and January 10, 2024, the Administrator did submit explanations via letters received by the Personal Data Protection Office (hereinafter referred to as "UODO") on November 3, 2023, and February 26, 2024; however, these explanations did not allow the supervisory authority to conduct a comprehensive assessment of the reported incident. Considering the received information and the need to conduct a thorough assessment of the reported incident, the President UODO again – in letters dated April 16, 2024, and June 18, 2024 – requested the Administrator to take appropriate actions aimed at:

- 1) re-notifying the data subject about the breach of their personal data,
- 2) indicating the name and contact details of the data protection officer or designating another contact

point from which more information can be obtained,

3) providing that person with detailed information regarding the description of possible consequences of the personal data breach,

4) eliminating similar irregularities in the future.

These requests, directed to the registered address of the Administrator, were received by him on April 19, 2024, and June 25, 2024, respectively. Despite receiving the correspondence, the Administrator did not provide any explanations enabling the authority to proceed further in the matter, nor did he justify in any way the inaction on his part. Each of the aforementioned letters addressed to the Administrator by the President UODO contained a notice that the failure to provide explanations as requested by the supervisory authority...

****Scope may result in the imposition of an administrative monetary penalty on the Administrator in accordance with Article 83(5)(e) of Regulation 2016/679.****

The above circumstances of the factual state were established by the President of the Personal Data Protection Office (UODO) based on the entirety of the official correspondence sent by the President of UODO to the Administrator, which is included in the case files of proceedings with reference number (...). This correspondence reflects the entirety of attempts made by the President of UODO to gain access to personal data and information necessary to fulfill his tasks – that is, to consider the case with reference number (...). On the other hand, it constitutes direct evidence of the lack of cooperation from the Administrator with the President of UODO in the performance of his duties.

****Proceedings****

In connection with the failure of the Administrator to provide exhaustive information necessary to investigate the case with reference number (...), the President of UODO initiated ex officio – based on Article 83(5)(e) of Regulation 2016/679 – this administrative proceeding with reference number DOKE.561.7.2024, concerning the imposition of an administrative monetary penalty on the Administrator due to the violation of Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679. The Administrator was informed about the initiation of the proceedings by a letter dated October 1, 2024 (reference number DOKE.561.7.2024), delivered to the Administrator on October 3, 2024. By this letter, the Administrator was informed that the submission of exhaustive explanations, which the President of UODO had previously requested from him in the proceedings with reference number (...), may mitigate the amount of the administrative monetary penalty imposed in this administrative proceeding or may result in the decision to refrain from imposing it.

In response to the information about the initiation of the proceedings regarding the imposition of an administrative monetary penalty by the President of UODO – by letters dated October 17, 2024, and October 30, 2024 – the Administrator's representative (power of attorney in the case files with reference number DOKE.561.7.2024) supplemented the previously submitted explanations, including information about the re-notification of the data subject about the breach of their personal data. This person was notified of the breach of their personal data by a letter dated April 18, 2024, which was delivered to them personally during a meeting at the SP ZOZ. Additionally, the data protection officer present at this meeting explained to the data subject what the breach of their personal data consisted of, indicated potential risks arising from the breach, and also what steps should be taken to secure against the negative consequences of this incident. Furthermore, the Administrator's representative submitted additional explanations regarding, among other things, the basis for the cooperation of SP ZOZ with S. S.A. based in W. (the data processor), i.e., the provider of the system that was breached. Regarding the violation of Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679, the Administrator's representative stated that the lack of proper cooperation with the President of UODO was solely due to technical reasons that occurred at SP ZOZ. The representative of SP ZOZ preparing the response to the requests from the President of UODO dated April 16, 2024, and June 18, 2024, sent them electronically (via email) to the Administrator's inbox in the form of a file. The protective filter used by the representative caused Microsoft Outlook to block access to it as potentially dangerous. The Administrator is aware that the aforementioned circumstance does not constitute an excuse for the "passivity" of SP ZOZ in response to the requests from the President of UODO but shows that there was no conscious and intentional lack of willingness to cooperate in providing the supervisory

authority access to all information necessary for resolving the case. The Administrator also explained that in response to the request from the President of UODO dated April 16, 2024 (reference number (...)), which mandated the re-notification of the data subject about the breach of the protection of their personal data, this was promptly executed by SP ZOZ (evidence: letter dated April 18, 2024, delivered to the data subject regarding the breach of the protection of their personal data). This means that the Administrator, through the aforementioned behavior, demonstrated a willingness to fulfill his obligations. The Administrator is aware that the failure to submit explanations to the President of UODO in response to the requests dated April 16, 2024, and June 18, 2024, within the specified time constitutes a violation of Article 31 of Regulation 2016/679. However, the cooperation he undertook excludes a dismissive attitude towards the proceedings conducted by the data protection authority (reference number (...)). Currently, SP ZOZ has provided the President of UODO with responses to all requests directed to it.

In connection with the fact that the Administrator has cooperated with the supervisory authority by responding to all the aforementioned requests, expressing active regret, he requested the President of UODO to refrain from imposing an administrative monetary penalty on him for the failure to comply with the obligations arising from Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679. After reviewing all the evidence gathered in the case, the President of the Personal Data Protection Office considered the following.

****Legal Provisions****

According to Article 57(1)(a) of Regulation 2016/679, the President of UODO, as the supervisory authority within the meaning of Article 51 of Regulation 2016/679, monitors and enforces the application of this regulation within its territory. As part of its competencies, the President of UODO conducts proceedings regarding the application of this regulation, including based on information received from another authority.

supervised or other public authority (Article 57(1)(h) of Regulation 2016/679). In order to enable the execution of the tasks defined in this manner, the President of the UODO is entitled to a number of powers specified in Article 58(1) of Regulation 2016/679 regarding the proceedings conducted, including the power to order the controller and the processor to provide all information necessary for the execution of his tasks (Article 58(1)(a) of Regulation 2016/679) and the power to obtain from the controller and the processor access to all personal data and all information necessary for the execution of his tasks (Article 58(1)(e) of Regulation 2016/679).

A breach of the provisions of Regulation 2016/679, consisting of the failure of a public authority acting as a controller or processor to provide access to the data and information mentioned above, resulting in a violation of the authority's rights as defined in Article 58(1) of Regulation 2016/679 (including the rights to obtain personal data and information necessary for the execution of his tasks and to gain access to premises, equipment, and means used for data processing), may be subject to an administrative fine of up to 100,000 Polish zlotys, in accordance with Article 83(5)(e) in fine of Regulation 2016/679 in connection with Article 102(1) and (3) of the Act of May 10, 2018 on the Protection of Personal Data (Journal of Laws of 2019, item 1781), hereinafter referred to as the "u.o.d.o." It should also be noted that the controller and the processor are obliged to cooperate with the supervisory authority in the performance of its tasks, as provided for in Article 31 of Regulation 2016/679. Failure to comply with this obligation is also subject to an administrative fine of up to 100,000 Polish zlotys, in accordance with Article 83(4)(a) of Regulation 2016/679 in connection with Article 102(1) and (3) of the u.o.d.o.

The President of the UODO is also entitled to a number of remedial powers specified in Article 58(2) of Regulation 2016/679, including the right to issue a reprimand to the controller or processor in the event of a breach of the provisions of Regulation 2016/679 by processing operations. According to Recital 148 of Regulation 2016/679, in order for the enforcement of its provisions to be more effective, sanctions, including administrative fines, should be imposed for violations, in addition to or instead of appropriate measures imposed under Regulation 2016/679 by the supervisory authority. If the violation is minor, the monetary penalty may be replaced by a reprimand. However, attention should be paid to

the nature, gravity, and duration of the violation, whether the violation was intentional, the actions taken by the controller to minimize damage, the degree of responsibility or any relevant prior violations, the manner in which the supervisory authority became aware of the violation, compliance with measures imposed on the controller or processor, adherence to codes of conduct, and any other aggravating or mitigating factors.

Pursuant to Article 60 of the u.o.d.o., proceedings regarding violations of personal data protection regulations are conducted by the President of the UODO. Furthermore, Article 7(1) of the u.o.d.o. states that in matters not regulated by this Act, the provisions of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws 2024, item 572), hereinafter referred to as the "k.p.a.", shall apply to administrative proceedings before the President of the UODO (including proceedings regarding the imposition of administrative fines mentioned in Chapter 11 of the u.o.d.o.). According to Article 7(2) of the u.o.d.o., these proceedings are single-instance proceedings.

Legal Assessment

Referring the above-mentioned provisions of Regulation 2016/679 to the established factual state in this case, it must be stated that the Administrator, as a party to the proceedings under reference number (...), by failing to provide a substantive response to the requests (letters of April 16, 2024, and June 18, 2024) from the President of the UODO for explanations, violated the obligation to cooperate with the supervisory authority and the obligation to ensure the President of the UODO access to information necessary for the execution of his tasks – arising from Articles 31 and 58(1)(a) and (e) of Regulation 2016/679.

Preventing access to all information that the President of the UODO requested from the Administrator, which was undoubtedly in his possession, hindered a thorough examination of the case and resulted in unjustified prolongation of the proceedings, which in turn contradicts the fundamental principles governing administrative proceedings – defined in Article 12(1) of the k.p.a. as the principles of thoroughness and speed of proceedings.

During the proceedings under reference number (...), the President of the UODO repeatedly called upon the Administrator to provide information necessary to assess the reported violation. The first three letters sent to the Administrator, delivered on October 19, 2023, November 24, 2023, and January 15, 2024, respectively, contained a request for explanations regarding the preliminary report of the personal data breach. Although the Administrator submitted explanations in letters received by the UODO on November 3, 2023, and February 26, 2024, these explanations did not allow the supervisory authority to make a comprehensive assessment of the reported incident. In two subsequent letters dated April 16, 2024, and June 18, 2024, the President of the UODO requested the Administrator to supplement the submitted explanations. These letters were delivered to the Administrator on April 19, 2024, respectively.

2024 and June 25, 2024 – remained without any response from him. The circumstance of delivering the aforementioned correspondence justifies the belief that the Administrator had an objective opportunity to familiarize himself with the content of the letters addressed to him and to respond within the time frame set by the supervisory authority. The described inaction of the Administrator, undisputed in light of the evidence gathered in this case, necessitated the initiation of these proceedings regarding the imposition of an administrative monetary penalty. Only direct telephone contact initiated by an employee of the UODO prompted the Administrator to resume cooperation with the President of the UODO, and in a letter dated October 17, 2024, and a letter dated October 30, 2024, the Administrator's representative provided the requested explanations – which allowed the President of the UODO to continue the proceedings in the aforementioned matter.

Considering the above findings, there is no doubt that the Administrator, through his behavior, committed a violation of the provisions of Regulation 2016/679. The justification presented by the Administrator's representative for the lack of response to the summons from the President of the UODO, although credible and significantly impacting the assessment of the Administrator's behavior in the context of the choice of sanction applied to him in these proceedings, does not relieve him of

responsibility for the established inaction. This is due to the fact that the Administrator bears the burden of ensuring such correspondence flow, including that sent via electronic mail within the Administrator's organization, which will allow for effective and timely fulfillment of the obligations imposed on him, in this case, responding to the summons from the President of the UODO in the proceedings with reference number (...).

Despite the obvious negligence on the part of the Administrator, the President of the UODO took the position that the established violation, consisting of a lack of cooperation with the President of the UODO in the performance of his tasks and failing to provide the President of the UODO with access to personal data and information necessary for the execution of his tasks – although highly reprehensible – was rectified by the Administrator immediately after becoming aware of these proceedings regarding the imposition of an administrative monetary penalty, i.e., upon the submission of further explanations by the Administrator to the UODO on October 17, 2024, and October 30, 2024. By providing detailed explanations, the Administrator demonstrated an active attitude and readiness for further cooperation with the supervisory authority, both in these proceedings and in any future proceedings initiated by the President of the UODO, in which the Administrator would be a party. This leads to the conclusion that the Administrator's lack of response to the summons from the President of the UODO did not stem from bad faith and was not intended to deliberately obstruct the proceedings conducted by the supervisory authority. In the opinion of the President of the UODO, the mere initiation of proceedings regarding the imposition of an administrative monetary penalty and the real prospect of imposing a financial penalty became a clear signal for the Administrator that further evasion of the obligations imposed by the provisions of Regulation 2016/679 would inevitably lead to the application of the most severe sanctions provided for by those provisions.

In light of the above, the President of the UODO deemed it justified to issue a reprimand to the Administrator concerning the established violation of Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679, while simultaneously accepting that, in light of the criteria specified in Article 83(2) of Regulation 2016/679, it would be effective and sufficient. However, it should be noted that in the event of a similar occurrence in the future, any reprimand issued by the President of the UODO against the Administrator will be taken into account when assessing the conditions justifying the imposition of an administrative penalty, in accordance with the principles set out in Article 83(2) of Regulation 2016/679 and will be considered to his detriment.

In this factual and legal state, the President of the UODO decided as stated in the operative part of this decision.

Instruction

The decision is final. The Party has the right to file a complaint against the decision to the Provincial Administrative Court in Warsaw, within 30 days from the date of its delivery, through the President of the UODO (address: ul. Stawki 2, 00 – 193 Warsaw). The fee for the complaint is 200 PLN. In the proceedings before the Provincial Administrative Court, the Party has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the Party's request submitted before the initiation of the proceedings or during the proceedings. The request is free of court fees.

Print article

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